

December 20, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15351
(FIRST REVISION)

EXPIRATION DATE: October 31, 2016

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Cooper-Atkins Corporation
Middlefield, CT
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of packages of thermometers identified as "Cooper Remote Sensing Thermometer" containing certain Division 2.1 material to be transported as excepted quantities by aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.4a in that excepted quantities of Division 2.1 contained in the thermometer may be shipped in aircraft in accordance with the conditions specified herein.
5. BASIS: This special permit is based on the application of Cooper-Atkins Corporation dated October 25, 2012.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Receptacles, small, containing gas (gas cartridges)	2.1	UN2037	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - This Special Permit applies to a thermometer to be used on walk-in freezers, coolers and oven applications.

1. The receptacle (inner receptacle) in which the material is filled is a part of the thermometer which remains a closed system using solder, remains closed throughout its functional life, is not designed for either discharge or refill, has a capacity ranging from 3.8 cc to 6.5 cc, and contains no more than 0.1 grams to 1.9 grams of material per (inner receptacle) unit.

2. The thermometer unit is packed in intermediate packaging consisting of enclosing plastic wrap.

3. The six (6) thermometer units are packaged in an outer packaging in which the combined weights of material are no more than 0.6 grams to 11.4 grams.

4. A total of six (6) outer packagings are overpacked in a fiberboard box meeting the performance level required in 49 CFR § 173.4a(f) in which the maximum net weight of material ranges from 3.6 grams to 68.4 grams.

5. The maximum thermometer units per overpack may not exceed 36 and the maximum gross weight per overpack may not exceed 64 pounds for transportation by cargo aircraft.

6. The maximum capacity of material per overpack ranges 134 cc to 231 cc.

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7. The maximum volume of overpack may be no more than 58,000 cubic centimeters.

8. The system pressure within the enclosed receptacle ranges from 124 psig at 60 °F to 109 psig at 70 °F.

b. OPERATIONAL CONTROLS -

1. Packages containing material packaged and marked in accordance with this Special Permit may not be carried in checked or carry-on baggage.

2. The annual shipments by air may not exceed 50.

c. MARKING REQUIREMENTS:

1. Each overpack must be marked "DOT-SP 15351."

2. Packages must be marked in accordance with 49 CFR 173.4a. For international shipments by air, packages must be marked "Dangerous Goods in Excepted Quantities."

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. The holder of this special permit must maintain a record of all activity conducted under the authority granted in this special permit. The record must contain a complete listing and number of shipments made to include: dates of shipment and description of shipment.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, passenger-carrying aircraft and cargo only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit

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must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this

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special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BenMoore